

PHILLIPS v. RADER-COLEMAN, et al.

22CV46116

PLAINTIFFS' MOTION FOR SUMMARY JUDGMENT

Before the Court is a motion for summary judgment or adjudication filed by Plaintiffs Kelly Lynn Phillips ("Kelly Lynn") and Richard Phillips ("Richard")("Plaintiffs")¹ against Defendant Sara Rader-Coleman ("Sara.")

The Court grants the Request for Judicial Notice.

I. Factual Background

This case involves a lengthy dispute over a gravel roadway that traverses over neighboring properties.

Kelly Lynn is the owner of real property in Calaveras County identified as Assessor's Parcel Numbers 012-001-002-000 and 014-002-004-00 ("Phillips Property") (UMF 1.) Sara is the owner of adjacent real property. ("Rader Property.") (UMF 2.)

A public road formerly known as Dorrday Road used to run through both the Phillips Property and the Rader Property until the Board of Supervisors of the County of Calaveras passed and adopted a resolution on April 17, 1967 abandoning that portion of Dorrday Road. (UMF 3.) The road was declared abandoned, subject to the reservation of access rights for public utilities. (*Ibid.*)

In 1981, the prior owners of the Phillips Property – Chester and Juanita Anderson ("Andersons") conveyed a "Grant of Easement" ("Easement") to Sara's grandparents, Jack and Wilberta Rader ("Grandparents.") (UMF 5.) The Easement purported to grant a roadway easement across their property along the road formerly known as Dorrday Road for the benefit of the Rader Property. (*Ibid.*) No easement instrument was ever duly recorded against the Phillips Property; a copy of the alleged document did not appear in the official records until 2013, when it was attached to a probate order. (UMF 7.) However, the Culpers permitted members of the Rader family to use the road, including during a lease of the property to a Rader family member for cattle operations through March of 2017. (UMF 44.) S

Kelly Lynn's parents were Norman and Shirley Culper ("Culpers") who purchased the Subject Property from the Andersons on July 20, 2000. (UMF 8.) The Grant-Deed does not reference the Easement. (UMF 9.) Sara contends that her Grandparents' house numbers were visible on the gate when the Culpers purchased it and that the buildings on the Rader Property were clearly visible at that time. (AMF 1,2.) Sara contends that a

¹ Given the common surnames of the parties, first names are used. No disrespect is intended.

road showing use went through the gate to the Rader Property at the time the Culpers bought the Phillips Property. (AMF 3.) Sara contends her grandfather put his mobile home on the Rader Property in 1974 and this is the home that Sara lives in today. (AMF 4.) Sara contends that her grandfather used the road across the Phillips Property for years and that she continued to openly do so from 2010 until the events giving rise to this lawsuit (AMF 5.) Sara contends that neither she, nor her Grandparents, ever sought permission from the Phillips to use the road. (AMF 7.) Jack Rader kept his own lock on the access gate from 1981 until his death in 2012, and then Sara continued to use her own lock at that time. (AMF 8.) Sara contends that Mr. Cupler visited the Phillips Property multiple times before purchasing it and was in fact friends with her grandfather. (AMF 9, 10.)

Kelly Lynn obtained one-half interest in the Subject Property in 2009 and then the other one-half interest in 2017. (UMF 11, 15.) After Kelly-Lynn took sole ownership, she continued to permit Sara to use the road and provided access through the gate. (UMF 46.) Sara admitted in discovery in 2023 that the road was used without interference until acrimonious events began two years before then (2021) (UMF 47.)

In or around 2021, Sara filed a complaint against Plaintiffs seeking the establish title pursuant to the Easement. (UMF 20.) Shortly thereafter, Kelly Lynn withdrew permission allowing Sara to use the road on the Phillips Property. (UMF 21.) Sara thereafter cut the locks on the gate and continued to use the roadway. (UMF 22.) It appears undisputed that in order to access the Rader Property, Sara must also traverse across a property belonging to the Burchards – who have never attempted to block Sara's access. (AMF 12.)

On June 23, 2022 Plaintiffs filed the instant action, bringing causes of action against Defendant for 1) Quiet Title, 2) Declaratory Relief, 3) Injunctive Relief, 4) Nuisance, 5) Trespass, and 6) Slander of Title. Defendant filed an Amended Cross-Complaint alleging similar claims on August 18, 2022.

Plaintiffs moves for summary adjudication or summary judgment on all causes of action, in the FACC involving the existence of easements. Defendant seeks adjudication of the competing claims for quiet title, declaratory relief and slander of title.

II. Legal Standard

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

Defendant has the initial burden to show Plaintiffs' claims have no merit by showing either (1) that one or more elements of each cause of action cannot be established or (2) there is a complete defense to the claims. (Code Civ. Proc., § 437c(p)(2); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-850.) If Defendant meets that burden, then the burden shifts to Plaintiffs to show that a triable issue of material fact exists as to the element or defense at issue. (*Ibid.*) In ruling on a motion for